

Overall Dimensions of Motor Vehicles (Prescription of Conditions for Exemption) Rules, 1991

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Overall Dimensions of Motor Vehicles (Prescription of Conditions for Exemption) Rules, 1991

UNION OF INDIA

India

Overall Dimensions of Motor Vehicles (Prescription of Conditions for Exemption) Rules, 1991

Rule

OVERALL-DIMENSIONS-OF-MOTOR-VEHICLES-PRESCRIPTION-OF-CONDITIONS-FOR-EXEMPTION-RULES-199

1 of 1991

Published on 12 September 1991

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Overall Dimensions of Motor Vehicles (Prescription of Conditions for Exemption) Rules, 1991

Published vide Notification G.S.R. 583(E), dated 12.9.1991, published in the Gazette of India, Extra., Part.2, Section 3(i), dated 12.9.1991 (w.e.f. 1991).

199.

In exercise of the powers conferred by section 110(3)(b) of the Motor Vehicles Act, 1988, the Central Government hereby makes the following rules, namely:

1.

-Short title and commencement

(1)

These rules may be called The Overall Dimensions of Motor Vehicles (Prescription of Conditions for Exemption) Rules, 1991.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

-Conditions for the grant of exemption from rule 93

The State Government may exempt any motor vehicle or any class of description of motor vehicles from the provisions of rule 93 of the Central Motor Vehicles Rules, 1989, subject to the fulfilment of any or all of the conditions specified in these rules which that Government may deem fit to impose, namely:-

(1)

Such motor vehicle or class of description of motor vehicles shall

(a)

observe such load restrictions as the State Government may by order specify in this behalf,

(b)

obtain the previous permission of such authority as may be specified by the State Government in this behalf before putting such vehicles on the load;

(c)

not, if they are loaded, travel over such bridges and cross-drainage structures on the road, which the State Government may have regard to the safety of the road structures specify;

(d)

where prohibited under clause (c) to travel over the structure referred to in that clause, the owner or transporter shall at his cost make arrangements to cross the rivers in accordance with the directions given by the authority specified by the State Government in this behalf;

(e)

give advance intimation to such authority or officer specified in this behalf by the State Government regarding the movement of such vehicle;

(f)

equip with necessary warning signals such as red flags in the day time, red light and reflectors in the night so as to indicate the extreme positions of the vehicle clearly;

(g)

move without any hindrance to the normal flow of traffic;

(h)

not exceed the speed limit of 16 kms. per hour.

(2)

Where any damage is caused to the roads or road structures directly or indirectly due to the movement of such vehicles, the operator of the vehicle or the transporter shall be liable to pay such amount to the State Government as may be assessed by the authorities in this behalf.

(3)

The State Government shall not be liable for any damage that may be caused to such vehicles or their contents through their transits;

(4)

Any grant of exemption under these rules shall be without prejudice to the right of the authorities specified in this behalf by the State Government to regulate or stop the movement of such vehicles having regard to the safety of roads, bridges, structures and other road users;

(5)

The State Government may, in consultation with the operator of the vehicle or the owner conduct route survey to assess the fitness of the roads for movement of such vehicles, feasibility of negotiating the curves more particularly in built-up areas, sufficiency of road width, adequacy of vertical clearance and any deficiencies identified in the assessment shall be rectified by the operators or owners of the vehicles;

(6)

Exemption granted under these rules shall be applicable only for operating such vehicles on roads lying in the jurisdiction of the Public Works Department of the respective State Government and operators of the vehicles or their owners thereof shall make their own arrangements to obtain the approval of the other Departments of local body authorities for plying on the roads lying within their jurisdiction.

3.

[Removal of doubts

[Sub-Rule (3) substituted by G.S.R. 634(E), dated 23.6.1992 (w.e.f. 23.6.1992).]

.For removal of doubts, it is hereby declared that any exemption granted under these rules in any State shall be valid throughout India .]

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